

Haneefa Begam v. State of U.P.

Allahabad High Court · Division Bench · 30 January 2012 · Writ-C No. 3178 of 2012 · **Writ not entertained; petitioner relegated to Ombudsman under cl. 7.10(iv).**

HEADNOTE

A writ against a Consumer Grievance Redressal Forum order is not entertained where clause 7.10(iv) of the U.P. Electricity Supply Code, 2005 gives a statutory remedy before the Ombudsman; the petitioner may pursue that remedy.

FACTUAL SUMMARY

Haneefa Begam challenged an order dated 30 April 2011 of the Consumer Grievance Redressal Forum by Writ-C No. 3178 of 2012 in the Allahabad High Court. On 18 January 2012 the Court granted leave to implead U.P. Power Corporation Limited and directed listing before the appropriate Bench. At the subsequent hearing, counsel for the licensee submitted that clause 7.10(iv) of the U.P. Electricity Supply Code, 2005 gave the petitioner a statutory remedy before the Ombudsman against the Forum's order.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10(iv)

ombudsman-statutory-remedy

HOLDING

A writ petition against a Consumer Grievance Redressal Forum order cannot be entertained where clause 7.10(iv) of the Electricity Supply Code, 2005 provides a statutory remedy before the Ombudsman; the petitioner may avail that remedy. ¶ 2

PRINCIPLE TAGS

clause-7.10-forum-ombudsman-route-for-billing-grievances

A writ against a Consumer Grievance Redressal Forum order is not entertained where clause 7.10(iv) of the U.P. Electricity Supply Code, 2005 gives a statutory remedy before the Ombudsman; the petitioner may pursue that remedy. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE CHALLENGE TO THE CGRF ORDER DATED 30 APRIL 2011

Writ not entertained; petitioner relegated to the Ombudsman under cl. 7.10(iv). ¶ 2